

26IWUD00798 26IWUD00798

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Tentative:

The court overrules the Defendants' demurrer. The court rejects the Defendants' argument the first amended complaint was untimely filed for two reasons. First, the amended complaint was filed before the hearing on the Defendants' demurrer and, as such, could be filed without leave to amend. (See Code Civ. Proc., ss 472, subd. (a), 1170, subd. (c).) Second, the amended complaint was likely filed after this court issued a tentative ruling sustaining the Defendants' demurrer to the original complaint with leave to amend, but one day before the court's tentative ruling became the ruling by operation of Rule of Court, rule 3.1308. Under Code of Civil Procedure section 128, subdivision (a)(8), this court has authority to "amend and control its process and orders so as to make them conform to law and justice." Pursuant to that authority, the court finds the Plaintiff had leave to amend the complaint for purposes of filing the first amended complaint.

The first amended complaint states a cause of action for unlawful detainer based upon nonpayment of rent, as the complaint appears on its face to comply with Code of Civil Procedure § 1161(2). The complaint is not defective or internally inconsistent for failing to attach the alleged lease agreement with the prior owner. The complaint alleges the Defendants breached that agreement, which became a month-to-month agreement after the original lease term ended, by failing to pay rent.

The Defendant's argument that the Plaintiff's co-owner is an indispensable party cannot be resolved via this demurrer, as it relies upon facts beyond the face of the complaint of which the court cannot take judicial notice. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The mere fact there is a co-owner of the property is not sufficient in and of itself to show the plaintiff is not the "landlord, or the successor in estate of the landlord," as required by Code of Civil Procedure section 1161(2). Nor would that fact show the plaintiff lacks a possessory interest in the property necessary to establish standing to bring this action. (See *Friendly Village Community Assn., Inc. v. Silva & Hill Constr. Co.* (1973) 31 Cal.App.3d 220, 224 [real party in interest must show "ownership, lawful possession, or right to possession, of the property"].)

With regard to the allegedly inconsistent allegations in the Plaintiff's complaint filed in Case No. 26IWUD00655, the Plaintiff voluntarily dismissed that action even before the Defendants filed a responsive pleading. Thus, the allegations in that complaint were never litigated and under the circumstances do not constitute binding judicial admissions in this action, even if they are inconsistent with the allegations in the first amended complaint. The complaint filed in this action effectively superseded the complaint filed in the previous action. (See *Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437, 456.)

To the extent the Defendants claim they had the right to file a demurrer because their previous pleading titled "Motion to invalidate service of amended complaint" was essentially a motion to quash, the demurrer is overruled. The Defendants have already filed an answer. The Defendants' motion for reconsideration of this court's order denying the motion to invalidate service is now moot.